

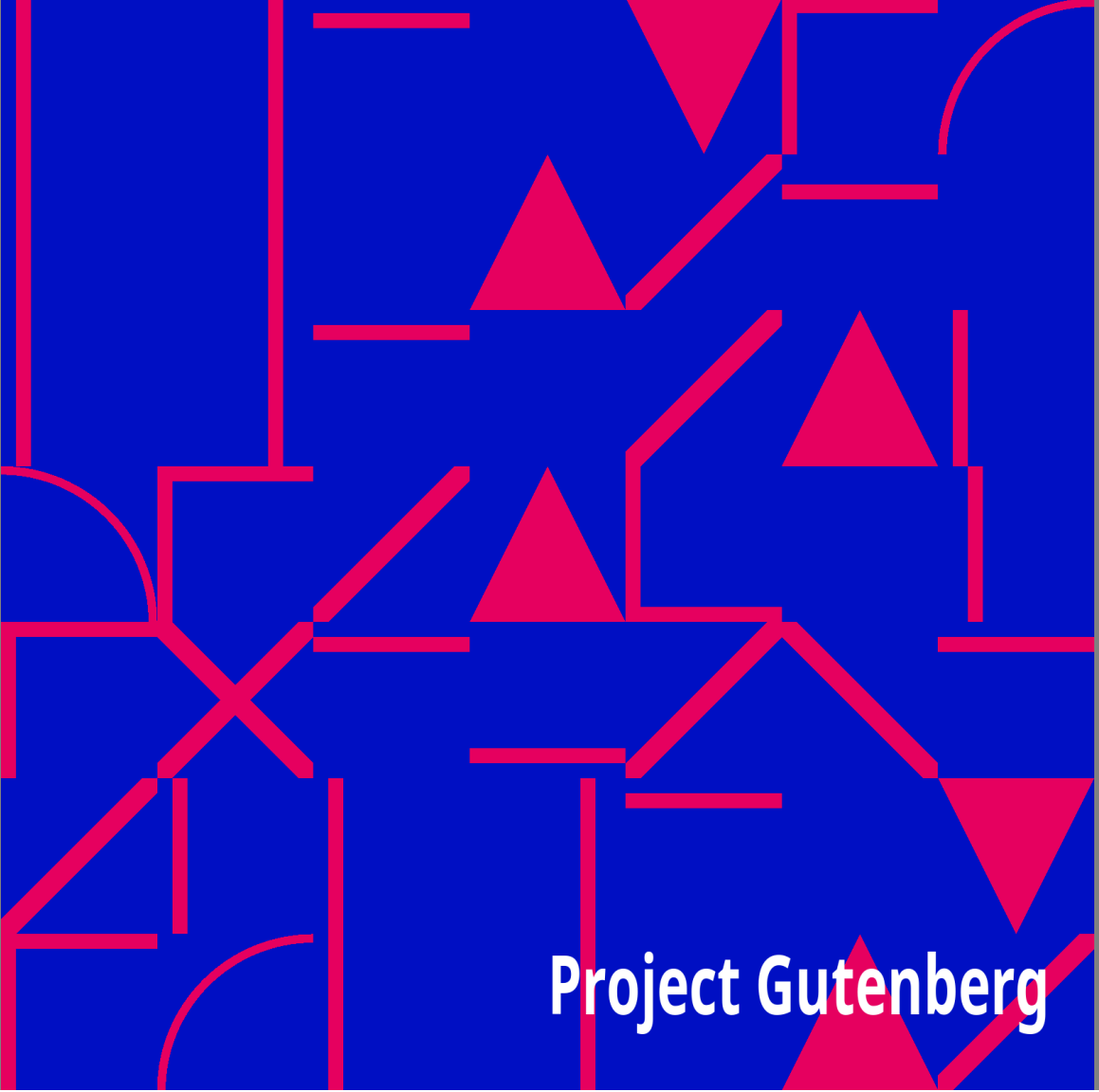
The South and the National Government

William H. Taft

Project Gutenberg

The South and the National Government

William H. Taft



Project Gutenberg

The Project Gutenberg eBook of The South and the National Government

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The South and the National Government

Author: William H. Taft

Release date: November 14, 2006 [eBook #19812]

Language: English

Other information and formats: www.gutenberg.org/ebooks/19812

Credits: Produced by Bryan Ness and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This book was produced from scanned images of public domain material from the Google Print project.)

***** START OF THE PROJECT GUTENBERG EBOOK THE SOUTH
AND THE NATIONAL GOVERNMENT *****

The South and the National Government

**By
The Honorable William Howard Taft**

President-elect of the United States

**An Address
Delivered at the Dinner of the North Carolina Society
of New York, at the Hotel Astor, December 7, 1908**

Introduction

The speech of the President-Elect at the recent annual banquet of the North Carolina Society, New York, found a warm response in the hearts of the Northern people, who have not failed to sympathize deeply with their Southern fellow citizens during their long years of affliction.

The orator expresses our feelings with rare felicity, and so keenly did his sentiments touch our hearts, it was resolved to publish his address and send it to our fellow citizens of the South as the messenger of peace and perfect reunion from their Northern countrymen.

Our Southern friends will note that no phase of the present unfortunate situation is neglected by Mr. Taft; all are dealt with in a clear and masterly manner. The North, as well as the South is enlightened as to their respective duties toward bringing about the desirable return of the South to its normal condition politically, so that American citizens in all sections of our common country will again belong to both of the great political parties, thus proving to the world that both parties command the allegiance of good citizens in all parts of the country who are desirous only for what they believe to be best for the good of the nation as a whole.

The future President of our common country, North, South, East, and West, who appeals to us, is a man of large heart, warm sympathies, and cool brain, of sound judgment and lofty purpose, who has at heart as one of the greatest possible triumphs of his administration the restoration of normal political conditions in the South. Under his wise and sympathetic leadership the

writer is sanguine of success--certain of it if the influential people of all sections give him the support he so richly deserves in this truly patriotic mission.

ANDREW CARNEGIE.

The Solid South

ADDRESS BY MR. WALTER H. PAGE

IN INTRODUCING THE HONORABLE WILLIAM H. TAFT

**At the Dinner of the North Carolina Society of
New York, at the Hotel Astor. December 7, 1908**

Here, if nowhere else, we leave political parties and preferences alone. But here, as everywhere else, we are patriotic men; and we North Carolinians have as our background a community that from the first showed a singularly independent temper. A freedom of opinion is our heritage. We once drove a Colonial Governor who disputed our freedom of political action to the safer shelter of the Colony of New York; and throughout our history we have shown a sort of passion for independent action, in spite of occasional eclipses; and that same temper shows itself now. We are, in fact, never sure that we are right till half our neighbors have proved that we are wrong.

We are, therefore, and have long been, much distressed by the political solidity of the states of Maine, Vermont, New Hampshire and Pennsylvania; and we wish that it were broken--not for the sake of the Democratic party nor for the sake of the Republican party (for the breach would benefit each

alike) but for the sake of greater freedom of political action by our unfortunate fellow citizens who dwell there. Where one party has too long and secure power it becomes intolerant and the other party falls into contempt. Thus these states have become stagnant or corrupt. For the sake of free political action we wish that their political solidity might be broken, so that the whole conscience and character of their people might find full political expression. What constructive influence have they, or have they in recent years had, in the nation's thought and political progress?

For the same reasons we have taken an especial pleasure in the recent breaking up of Ohio, Minnesota, and Indiana--where on the same day presidential electors of one party and governors of the other party were chosen; for this breaking asunder of party dominance makes both parties tolerant and careful, helping them both and showing the utmost freedom of political action. And these states contribute much to our political life.

By the same token we rush in where Texas and Virginia fear to tread, and we shall welcome the impending and inevitable breaking of the Solid South (perhaps we shall lead it), not for the sake of the Democratic party nor for the sake of the Republican party (although it would help each party equally), but for the sake of open-mindedness and of freedom of political action, so that all men there may walk by thought and not by formulas, and act by convictions and not by traditions. Where-ever one party by long power breeds intolerance, the other falls into contempt. And what constructive influence have the Southern States in our larger political life? From some of them, where parties have fallen low, we have seen men go to one national convention as a mere unthinking personal following of a candidate even then clad in garments of twofold defeat; and to the conventions of the other party we have sometimes seen office-holding shepherds with their crooks drive their mottled flocks to market. We are tired of this political inefficiency, this long isolation, and these continued

scandals; and we are tired of the conditions that produce them. If parties are to be instruments of civilized government, the conditions that produce such scandals must cease. We must have in the South a Democratic party of tolerance and a Republican party of character; and neither party must be ranged on lines of race.

We aspire to a higher part in the Republic than can be played by men of closed minds or of unthinking habits or by organized ignorance. We aspire again to a share in the constructive work of the government in these stirring days of great tasks at home and growing influence abroad.

I am leaving party politics severely alone, but I am speaking to a national and patriotic theme. A Republican Administration or a Democratic Administration is a passing incident in our national history. Parties themselves shift and wane. And any party's supremacy is of little moment in comparison with the isolation of a large part of the Union from its proper political influence.

The manhood and the energy and the ambition of Southern men now find effective political expression through neither party. The South, therefore, neither contributes to the Nation's political thought and influence nor receives stimulation from the Nation's thought and influence. Its real patriotism counts for nothing--is smothered dumb under party systems that have become crimes against the character and the intelligence of the people. The South gives nothing and receives nothing from the increasing national political achievement of every decade. Politically it is yet a province; and we are tired of this barren seclusion. Men who prefer complaint to achievement may regard this as treason: let them make the most of it. We prefer a higher station in the Union than New Hampshire and Vermont and Pennsylvania and Arkansas hold.

From the first our commonwealth conspicuously stood for something greater than any party, something that antedates all our parties, that spirit of independence in political judgment and action which brought the old thirteen states into being and made the Republic possible. And that spirit is not dead yet.

If it cannot regain its old-time influence through one party, it will regain it through another.

We are the descendants of men who fashioned parties in their beginning; and, if need be, we can refashion them. For the aim of government is not to preserve parties but to give range to free individual action in a democracy. And it is in this spirit of national aspiration that we welcome our distinguished guest of honor--a man now placed above parties, and too just to regard the Republic by sections, our best equipped citizen for the highest office in the world.

TO THE PRESIDENT-ELECT: *May his administration mark the return of Southern character and sincerity to its old-time part in the constructive work of government and the end forever of political isolation from the achievements and the glory of the Union!*

The South and the National Government

**ADDRESS BY
THE HONORABLE WILLIAM HOWARD TAFT**

PRESIDENT-ELECT OF THE UNITED STATES

North Carolina presents an admirable type of the present conditions in the South. It offers, therefore, a suitable subject for the discussion planned for this evening, and I count it a privilege to be present to hear it. One, in any degree responsible for the government and welfare of the whole country at this time in her history, must take an especial interest in the trend of public opinion and the conditions, material and political, of the South.

The laws of the United States have equal operation from the Canadian border to the Gulf of Mexico. Congress has representatives from every part of the country, including the South, whose votes are recorded upon national legislation. Railroads do not break bulk between North and South. Interstate commerce goes on unvexed between the one and the other. The Post-office department distributes its mail with impartiality on each side of Mason's and Dixon's Line. Prosperity in the North is accompanied by prosperity in the South, and a halt in the one means a halt in the other. Northern people meet Southern people, and find them friendly and charming and full of graceful and grateful companionship.

What is it that sets the South apart and takes from the Southern people the responsibilities which the members of a republic ought to share in respect to the conduct of the National Government? Why is it that what is done at Washington seems to be the work of the North and the West, and not of the South? Should this state of affairs continue? These are the questions that force themselves on those of us concerned with the Government and who are most anxious to have a solid, united country, of whose will the course of the Government shall be an intelligent interpretation and expression.

We can answer these questions as the historian would, and we can explain the situation as it is; but I don't think we can justify or excuse a continuance of it. Looking back into the past, of course, the explanation of the difference

between the South and the other two sections was in the institution of slavery. It is of no purpose to point out that early in the history of the country the North was as responsible for bringing slaves here as the South. We are not concerned with whose fault it was that there was such an institution as slavery. Nor are we concerned with the probability that, had the Northerners been interested in slaves, they would have viewed the institution exactly as the Southerners viewed it and would have fought to defend it because as sacred as the institution of private property itself. It is sufficient to say, as I think we all now realize, that the institution of slavery was a bad thing and that it is a good thing to have got rid of it. It doesn't help in the slightest degree in the present day to stir up the embers of the controversy of the past by attempting to fix blame on one part of the country or the other, in respect to an institution which has gone, and happily gone, on the one hand, or in respect to the consequences of that institution which we still have with us, on the other. These consequences we are to recognize as a condition and a fact, and a problem for solution rather than as an occasion for crimination or recrimination.

Over the question of the extension of slavery the Civil War came, and that contest developed a heroism on both sides, in the people from the North and the people from the South, that evokes the admiration of all Americans for American courage, self-sacrifice, and patriotism. But when slavery was abolished by the war the excision of the cancer left a wound that must necessarily be a long time in healing. Nearly 5,000,000 slaves were freed; but 5 per cent. of them could read or write; a much smaller percentage were skilled laborers. They were but as children in meeting the stern responsibilities of life as free men. As such they had to be absorbed into and adjusted to our civilization. It was a radical change, full of discouragement and obstacles. Their rights were declared by the war Amendments, the Thirteenth, Fourteenth and Fifteenth. The one established their freedom; the second their citizenship and their rights to pursue happiness and hold

property; and the third their right not to be discriminated against in their political privileges on account of their color or previous condition of servitude.

I am not going to rehearse the painful history of reconstruction, or what followed it. I come at once to the present condition of things, stated from a constitutional and political standpoint. And that is this: That in all the Southern States it is possible, by election laws prescribing proper qualifications for the suffrage, which square with the Fifteenth Amendment and which shall be equally administered as between the black and white races, to prevent entirely the possibility of a domination of Southern state, county, or municipal governments by an ignorant electorate, white or black. It is further true that the sooner such laws, when adopted, are applied with exact equality and justice to the two races, the better for the moral tone of state and community concerned. Negroes should be given an opportunity equally with whites, by education and thrift, to meet the requirements of eligibility which the State Legislatures in their wisdom shall lay down in order to secure the safe exercise of the electoral franchise. The Negro should ask nothing other than an equal chance to qualify himself for the franchise, and when that is granted by law, and not denied by executive discrimination, he has nothing to complain of.

The proposal to repeal the Fifteenth Amendment is utterly impracticable and should be relegated to the limbo of forgotten issues. It is very certain that any party founded on the proposition would utterly fail in a national canvass. What we are considering is something practical, something that means attainable progress. It seems to me to follow, therefore, that there is, or ought to be, a common ground upon which we can all stand in respect to the race question in the South, and its political bearing, that takes away any justification for maintaining the continued solidity of the South to prevent the so-called Negro domination. The fear that in some way or other a social

equality between the races shall be enforced by law or brought about by political measures really has no foundation except in the imagination of those who fear such a result. The Federal Government has nothing to do with social equality. The war amendments do not declare in favor of social equality. All that the law or Constitution attempt to secure is equality of opportunity before the law and in the pursuit of happiness, and in the enjoyment of life, liberty, and property. Social equality is something that grows out of voluntary concessions by the individuals forming society.

With the elimination of the race question, can we say that there are removed all the reasons why the people of the South are reluctant to give up their political solidarity and divide themselves on party lines in accordance with their economic and political views? No. There are other reasons, perhaps only reasons of sentiment, but with the Southern people, who are a high-strung, sensitive, and outspoken people, considerations of sentiment are frequently quite as strong as those of some political or economic character. In the first place it is now nearly forty years since the South acquired its political solidarity, and the intensity of feeling by which it was maintained, and the ostracism and social proscription imposed on those white Southerners who did not sympathize with the necessity for such solidarity, could not but make lasting impression and create a permanent bias that would naturally outlast the reason for its original existence. The trials of the reconstruction period, the heat of the political controversies with the Republican party, all naturally, during the forty years, implanted so deep a feeling in the Southern Democratic breast that a mere change of the conditions under which this feeling was engendered could not at once remove it. The Southern people are a homogeneous people; they preserve their traditions; they are of the purest American stock; and the faith of the father is handed down to the son, even after the cause of it has ceased, almost as a sacred legacy.

Again, for a long time succeeding the war, the South continued poor. Its development was much slower than that of the rest of the country. Prosperity seemed to be Northern prosperity, not Southern. And, in such a time, the trials of life of the present only accentuated the greater trials of the past, and reminiscences of the dreadful sufferings and privations of the war were present on every hand, and feelings that the controversy had given rise to, remained with an intensity that hardly seemed to be dimmed by passing time.

But times change, and men change with them in any community, however fixed its thoughts or habits, and many circumstances have blessed us with their influence in this matter.

The growth of the South since 1890 has been marvelous. The manufacturing capital in 1880 was \$250,000,000, in 1890, \$650,000,000, in 1900, \$1,150,000,000 and in 1908, \$2,100,000,000, while the value of the manufactures increased from \$450,000,000, in 1880 to \$900,000,000 in 1890, to \$1,450,000,000 in 1900, and to \$2,600,000,000, in 1908. The farm products in 1880 were \$660,000,000, in 1890 were \$770,000,000, in 1900, \$1,270,000,000, in 1908 \$2,220,000,000. The exports from the South in 1880 were \$260,000,000, in 1890 \$306,000,000, in 1900, \$484,000,000, and in 1908, \$648,000,000.

In this marvelous growth the manufactures of the South now exceed the agricultural products, and thus a complete change has come over the character of her industries. The South has become rich, and only the surface of her wealth has been scratched. Her growth has exceeded that of the rest of the country, and she is now in every way sharing in its prosperity.

Again, the Democratic party has not preserved inviolate its traditional doctrines as to state's rights and other issues, and has for the time adopted new doctrines of possibly doubtful economic truth and wisdom. Southern

men, adhering to the party and the name, find themselves, through the influence of tradition and the fear of a restoration of conditions which are now impossible, supporting a platform and candidate whose political and economic theories they distrust. Under these conditions there was in the last campaign, and there is to-day throughout the South, among many of its most intelligent citizens, an impatience, a nervousness, and a restlessness in voting for one ticket and rejoicing in the success of another.

Now, I am not one of those who are disposed to criticize or emphasize the inconsistency of the position in which these gentlemen find themselves. I believe it would be wiser if all who sympathize with one party and its principles were to vote its ticket, but I can readily understand the weight and inertia of the tradition and the social considerations that make them hesitate. I believe that the movement away from political solidity has started, and ought to be encouraged, and I think one way to encourage it is to have the South understand that the attitude of the North and the Republican party toward it is not one of hostility or criticism or opposition, political or otherwise; that they believe in the maintenance of the Fifteenth Amendment; but that, as already explained, they do not deem that amendment to be inconsistent with the South's obtaining and maintaining what it regards as its political safety from domination of an ignorant electorate; that the North yearns for closer association with the South; that its citizens deprecate that reserve on the subject of politics which so long has been maintained in the otherwise delightful social relations between Southerners and Northerners as they are more and more frequently thrown together.

In welcoming to a change of party affiliation many Southerners who have been Democrats, we are brought face to face with a delicate situation which we can only meet with frankness and justice. In our anxiety to bring the Democratic Southerner into new political relations we should have and can

have no desire to pass by or ignore the comparatively few white Southerners who from principle have consistently stood for our views in the South when it cost them social ostracism and a loss of all prestige. Nor can we sympathize with an effort to exclude from the support of Republicanism in the South or to read out of the party those colored voters who by their education and thrift have made themselves eligible to exercise the electoral franchise.

We believe that the solution of the race question in the South is largely a matter of industrial and thorough education. We believe that the best friend that the Southern Negro can have is the Southern white man, and that the growing interest which the Southern white man is taking in the development of the Negro is one of the most encouraging reasons for believing the problem is capable of solution. The hope of the Southern Negro is in teaching him how to be a good farmer, how to be a good mechanic; in teaching him how to make his home attractive and how to live more comfortably and according to the rules of health and morality.

Some Southerners who have given expression to their thoughts seem to think that the only solution of the Negro question is his migration to Africa, but to me such a proposition is utterly fatuous. The Negro is essential to the South in order that it may have proper labor. An attempt of Negroes to migrate from one state to another not many years ago led to open violence at white instigation to prevent it. More than this, the Negroes have now reached 9,000,000 in number. Their ancestors were brought here against their will. They have no country but this. They know no flag but ours. They wish to live under it, and are willing to die for it. They are Americans. They are part of our people and are entitled to our every effort to make them worthy of their responsibilities as free men and as citizens.

The success of the experiments which have been made with them on a large scale in giving them the benefit of thorough primary and industrial style="":
" education, justifies and requires the extension of this system as far as possible to reach them all.

The proposition to increase the supply of labor in the South by emigration from Europe, it seems to me, instead of being inimical to the cause of the Negro, will aid him. As the industries of the South continue to grow in the marvelous ratio already shown, the demand for labor must increase. The presence of the Southern community of white European labor from the southern part of Europe will have, I am hopeful, the same effect that it has had upon Negro labor on the Isthmus of Panama. It has introduced a spirit of emulation or competition, so that to-day the tropical Negroes of the West Indies do much better work for us in the canal construction since we brought over Spanish, Italian, and Greek laborers.

Ultimately, of course, the burden of Negro education must fall on the Southern people and on Southern property owners. Private charity and munificence, except by way of furnishing an example and a model, can do comparatively little in this direction. It may take some time to hasten the movement for the most generous public appropriations for the education of the Negro, but the truth that in the uplifting of the Negro lies the welfare of the South is forcing itself on the far-sighted of the Southern leaders. Primary and industrial education for the masses, higher education for the leaders of the Negro race, for their professional men, their clergymen, their physicians, their lawyers, and their teachers, will make up a system under which their improvement, which statistics show to have been most noteworthy in the last forty years, will continue at the same rate.

On the whole, then, the best public opinion of the North and the best public opinion of the South seem to be coming together in respect to all the

economic and political questions growing out of present race conditions.

The attitude of the candidate and the platform of the Democratic Party in the last election made this campaign a most favorable one to bring home to the Southern people for serious consideration the query why they should still adhere to political solidity in the South. It may be that four years hence the candidate and platform of the Democratic Party will more approve themselves to the South and to the intelligent men of the South. Under these conditions there may seem to be a retrograde step, and the South continue solid, but I venture to think that the movement now begun will grow, slowly at first, but ultimately so as to extend the practical political arena for the discussion of party issues into all the Southern States.

The recent election has made it probable that I shall become more or less responsible for the policy of the next Presidential Administration, and I improve this opportunity to say that nothing would give me greater pride, because nothing would give me more claim to the gratitude of my fellow-citizens, than if I could so direct that policy in respect to the Southern States as to convince its intelligent citizens of the desire of the Administration to aid them in working out satisfactorily the serious problems before them and of bringing them and their Northern fellow-citizens closer and closer in sympathy and point of view. During the last decade, in common with all lovers of our country, I have watched with delight and thanksgiving the bond of union between the two sections grow firmer. I pray that it may be given to me to strengthen this movement, to obliterate all sectional lines, and leave nothing of difference between the North and the South, save a friendly emulation for the benefit of our common country.

*** END OF THE PROJECT GUTENBERG EBOOK THE SOUTH AND
THE NATIONAL GOVERNMENT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without

paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you

may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.